

Athens, 30-04-2025

No. Protocol: 1465

DECISION 15/2025

(Department)

The Hellenic Data Protection Authority convened, at the invitation of its President, in a regular meeting in the composition of a Department, at its headquarters on 15-01-2025, in order to examine the case referred to in the background of this document. Present at the meeting via teleconference were Georgios Batjalezis, Deputy President, due to the absence of the President of the Authority Konstantinos Menoudakos, and Demosthenes Bougioukas and Maria Psalla, alternate members of the Authority, replacing Konstantinos Lamprinoudakis and Grigorios Tsolias respectively, who, although duly summoned in writing, did not attend due to impediments. Also present at the meeting was Nikolaos Libos as the rapporteur. Present, without voting rights, were Eleni Kapralou, legal expert, as assistant rapporteur, and Irini Papageorgopoulou, employee of the Administrative Affairs Department, as secretary.

The Authority took into account the following:

With the complaint No. G/ΕΙΣ/1304/20-02-2023 regarding the violation of the provisions within the Authority's jurisdiction, A (hereinafter "the complainant") reports the Municipality of Patras (hereinafter "the complained party") regarding the fact that from ... on the official website of the Municipality of Patras¹, personal data concerning him (name, surname, workplace, job position, and his political beliefs) are unlawfully published,

as well as an excerpt from the email he had sent to the other 14 members of the Primary Education School Committee of the Municipality of Patras, in view of its meeting on 05-10-2022. He even claims that the said email was printed by the Chair of the Committee and a photograph of it was taken by its Vice-Chair, thus resulting in it being published on the website of the Municipality of Patras.

In the context of examining the above complaint, the Authority sent to the complained party the document No. G/ΕΞΕ/1342/26-05-2023 requesting their views. Subsequently, the complained party responded to the above document with their document No. G/ΕΙΣ/4336/09-06-2023, specifically claiming that:

1. The Municipality has an official website (www.e-patras.gr), through which services are provided to citizens and businesses, information about the Municipality's projects, activities, and initiatives, as well as information on current issues deemed of major interest to the Municipality and its citizens.
2. The contested publication was posted on the official website of the Municipality for the purpose of providing accurate and complete information to the citizens regarding a current issue of major and universal interest with social implications, namely the operation of the Solidarity People's Tutorial of the Municipality.
3. The publication concerned the decision of the School Committee of Primary Education Schools of the Municipality of Patras for the financial support of the Municipality's People's Tutorial with the approval of an expenditure of €800.00, plus VAT, for the procurement of cleaning and disinfection supplies, to meet its needs. It mentioned that this decision of the School Committee was made by majority, as objections were raised by a specific member of the school committee's administration, not only regarding the justification or otherwise of the specific financial support but also regarding the overall necessity and legality of the operation of the People's Tutorial in the Municipality.
4. The operation of the People's Tutorial is part of the broader framework of the Municipality's initiatives for social action and solidarity. The fact that the People's Tutorial has been operating continuously all these years, with increased...

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The participation of children per year demonstrates, among other things, the importance that the citizens attribute to it, which makes it necessary to inform them about any issues related to its uninterrupted and continuous operation. For all the above reasons, it was deemed absolutely necessary by the municipal authority to inform the citizens about the contentious meeting of the

primary school committee and the objections submitted to it by a specific regular member, who represents a specific political party within the school committee.

5. Regarding the personal data of the complainant, which were made public for the above journalistic purposes, it is noted that the specific personal data constitute data directly related to the complainant's capacity as a member of the Board of Directors of the specific legal entity and therefore are public for the purposes of transparency in public administration. The contentious statement of the complainant, which was the subject of the publication, was made within the framework of the public meeting of the administrative board of the school committee, in which the complainant participated, and his statement was made in his capacity as a member thereof. The aforementioned named statement of the complainant was included verbatim in the minutes kept for the meeting, which are also public, as well as in the decision that was issued and posted on the DIAVGEIA Program (ADA:...) for transparency purposes. Even the fact of the complainant's political beliefs is also intertwined with his specific capacity as a member of the Board of Directors of the legal entity, since in this position, he is appointed by a municipal party, which he represents within the School Committee, according to the legislation governing school committees. Finally, beyond all the above, it concerned data (and specifically the data regarding his political beliefs) that had evidently been made public by the data subject himself.

6. Furthermore, the accused Municipality attaches to its above response the complainant's posts on the internet, specifically on his personal Facebook page, which is freely accessible to the public as public and on which he has posted his political beliefs, as a supporter of [the party] X, his candidacy with the Trade Union party of educators supported by [the party] X, his public articles supporting the political positions of [the party] X, and his candidacy as a Community Councilor of the Eastern Sector of the Municipality of Patras with the Municipal party "Ψ" supported by [the party] X. Given that the above posts of the complainant on his Facebook profile are public and freely accessible to all (while he could have chosen privacy settings), the user's desire for the publication of his data is presumed, and therefore all information posted by the data subject himself in public access on the internet does not constitute personal data and does not fall under the protective provisions of the law on personal data.

7. Additionally, regarding the composition and operation of the School Committee of Primary Education Schools of the Municipality of Patras, it constitutes a legal entity of public law, according to the provisions of Article 240 of Law 3463/2006, and for the appointment of its governing members, the provisions of Ministerial Decision 63967/2019 (Government Gazette B 3537/20.9.2019) are taken into account, which amends Article 1 of Ministerial Decision 8440/2011 (Government Gazette B' 318), in conjunction with the provisions of paragraph 1 of Article 6 of Law 4623/2019. Specifically, according to the provisions of Ministerial Decision 63967/2019 (Government Gazette B 3537/20.9.2019): ".....a. Paragraph 1 of Article 1 is replaced as follows: '1. a. The school committees are legal entities of public law governed by a board of directors, which consists of up to fifteen (15) members, according to the provisions of Article 103 paragraph 2 of Law 3852/2010 and Article 240 of the Code of Municipalities and Communities. Among the members, both regular and alternate, the following are mandatorily appointed: two (2) directors from the five oldest of the school units of primary and secondary education, respectively, one (1) from the oldest kindergarten teachers for the primary education committee, one (1) representative of the corresponding parents' association, and in the case where there is no parents' association, one (1) representative of the existing parents' clubs, prioritized by the size of the student population of the school unit, one (1) representative of the student communities for secondary education schools, according to...

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****Priority of Size in Student Potential of a School Unit.**** The remaining members are designated in the ratio provided by the provisions of paragraph 1 of article 6 of law 4623/2019 (A' 134). During the meetings of the school committees, when issues concerning a specific school unit are discussed, the relevant school unit director is invited, who participates with voting rights. Furthermore, according to the provisions of paragraph 1 of article 6 of law 4623/2019, it is stated: "Where the provisions of laws, presidential decrees, and other regulatory acts provide for the designation of members in the

administration of legal entities of municipalities and regions, as well as their associations, according to a specific ratio, three-fifths (3/5) of the members, including the president of the board of directors, along with their alternates, are indicated by the mayor or the regional governor, respectively, and two-fifths (2/5) by the other factions."

In light of the above, the complainant states that the issues of the composition of the Board of Directors of a school committee, regarding the qualifications of the members, are regulated by ministerial decision 63967/2019 (Government Gazette B 3537/20.9.2019) which amends ministerial decision 8440/2011 (Government Gazette B' 318), as well as by the provisions of article 6 of law 4623/2019, and thus it becomes clear that both the qualifications of the members of the Board of Directors of the School Committee (as school directors, kindergarten teachers, etc.), and the fact that within the committee, they represent political factions of the Municipality, as members indicated by them, constitute elements of their designation as regular and alternate members of the legal entity of the Municipality. Additionally, the details of the members of the Board of Directors of a public law legal entity are public and must be posted, for the purpose of transparency in public administration. For the same reason, both the meetings of the School Committee, which take place in a municipal building freely accessible to the public, and the decisions it makes, are required to be posted in the DIAVGEIA system, in compliance with a legal obligation of the legal entity.

8. Specifically regarding the complainant, he was appointed as a regular member of the Board of Directors of the primary School Committee, following a relevant indication from the municipal faction "Ψ," which is politically aligned [with the faction] X.

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Therefore, the details of the complainant, as well as the fact that he represents a specific political faction within the School Committee, constituted elements of his designation as a regular member of the public law legal entity, and furthermore, the complainant himself has politically aligned with this specific space through numerous publications in the press as well as public statements, clearly publicizing his political identity in the public discourse. As a result, no right to the protection of the private life and personal data of the complainant was violated, because the data that was publicized concerned his capacity as a member of the School Committee (name, surname, profession) and were published as such. Additionally, his political beliefs had, on the one hand, been clearly publicized by himself, and on the other hand, his participation in the School Committee was made as a representative of a specific faction and at its indication, in accordance with the legislative framework governing the composition of the Boards of these committees. Furthermore, the informing of the citizens regarding this specific issue, which falls within the framework of the public sphere and transparency in the exercise of administrative action, made the processing of the specific data of the complainant for journalistic purposes and for the purpose of informing the citizens necessary and proportionate to the intended purpose, purposes that could not be achieved otherwise, except through the disclosure of the complainant's details and his controversial position, within the context of the public meeting of the Legal Entity. Following all the above, according to the claims of the respondent, it becomes clear that the Municipality, as the data controller, had the right to proceed with the controversial processing ("dissemination") of the personal data of the complainant for the purpose of informing the citizens, and the controversial processing was absolutely necessary and proportionate to the intended purpose.

9. Finally, the respondent Municipality emphasizes that the right to information of the citizens regarding such a major issue outweighed, in this case, the right to the protection of the personal data of the complainant, especially since the data that was publicized was already public, due to the capacity of the complainant as a member of the Board of Directors.

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were connected to his public statement in the context of a meeting of the legal entity and were additionally data that were evidently made public by him. Following the above, the Authority summoned, with its letters numbered Γ/ΕΞ/2667/03-10-2024 and Γ/ΕΞ/2668/03-10-2024, A and the

Municipality of Patras respectively, to a hearing, in order to present their views on the case, at the Authority's Department, on October 9, 2024, on which date the case was postponed to October 30, 2024, when the letter numbered Γ/ΕΞ/2734/09-10-2024 was sent to the complainant. During the meeting of the Authority's Department on October 30, 2024, the lawyer of the Municipality of Patras, Konstantina Papadopoulou, with registration number ..., attended via videoconference, while A did not attend. During the hearing, the Municipality of Patras presented its views and subsequently, was granted a deadline and submitted in due time the memorandum numbered Γ/ΕΙΣ/9059/22-11-2024, while the respondent did not submit a memorandum. Specifically, the respondent Municipality, with the aforementioned memorandum, reiterates what it had claimed in the letter numbered Γ/ΕΙΣ/4336/09-06-2023 providing its views, and adds that the legitimate interest of the people of Patras, who are informed through the Municipality's website, constitutes the basis for the contested posting, which, following the indication of the data processing officer of the Municipality, has been removed from the website where it was initially published. The Authority, after examining all the elements of the file and the discussions that took place in the meeting of October 30, 2024, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights after thorough discussion

THOUGHT ACCORDING TO THE LAW

1. Since according to the provisions of Articles 51 and 55 of the General Data Protection Regulation (EU) 2016/679 (hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically,

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from the provisions of Articles 57(1)(f) of the GDPR and 13(1)(g) of Law 4624/2019, it follows that the Authority has the competence to address the aforementioned complaint, as it concerns the publication of the complainant's personal data, that is, an act of processing that takes place through automated means, and the Authority's competence is established (Articles 2(1) GDPR and 2 Law 4624/2019).

2. Since specifically, according to Article 4(1) of the GDPR, "personal data means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

3. Since further, according to Article 4(2) of the GDPR, processing of personal data means "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

4. Since according to Article 4(7) of the GDPR, the data controller is "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

5. Since according to Recital 4 of the GDPR, "The processing of personal data should be designed to serve mankind. The

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The right to the protection of personal data is not an absolute right; it must be assessed in relation to its function in society and weighed against other fundamental rights, in accordance with the principle of proportionality. This regulation respects all fundamental rights and upholds the freedoms and principles recognized in the Charter as enshrined in the Treaties, particularly the respect for private and family life, home and communications, the protection of personal data, freedom of thought,

conscience and religion, freedom of expression and information, business freedom, the right to an effective remedy and a fair trial, and cultural, religious and linguistic diversity.

6. Whereas in Recital 153 of the GDPR, "The law of the Member States should reconcile the rules governing freedom of expression and information, including journalistic, academic, artistic or literary expression, with the right to the protection of personal data under this regulation. The processing of personal data solely for journalistic purposes or for academic, artistic or literary expression should be subject to exceptions or derogations from certain provisions of this regulation, where necessary to reconcile the right to the protection of personal data with the right to freedom of expression and information, as enshrined in Article 11 of the Charter. This should apply in particular to the processing of personal data in the audiovisual sector and in news archives and type libraries. Therefore, Member States should enact legislative measures that provide for the necessary exceptions and derogations to balance these fundamental rights. Member States should establish such exceptions and derogations concerning general principles, the rights of the data subject, the data controller and the processor, the transfer of personal data to third countries or international organizations, independent supervisory authorities, cooperation and consistency, and specific cases of data processing.

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When such exemptions or derogations differ from one Member State to another, the law of the Member State to which the data controller is subject should apply. To take into account the importance of the right to freedom of expression in any democratic society, it is necessary to interpret broadly the concepts related to that freedom, such as journalism.

7. Whereas according to Article 11(1) of the Charter of Fundamental Rights of the EU, "1. Everyone has the right to freedom of expression. This right includes freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers."

8. Whereas according to Article 85 of the GDPR, "1. Member States shall, by law, reconcile the right to the protection of personal data under this regulation with the right to freedom of expression and information, including processing for journalistic purposes and for academic, artistic or literary expression. 2. For processing carried out for journalistic purposes or for academic, artistic or literary expression, Member States shall provide for exceptions or derogations from Chapter II (principles), Chapter III (rights of the data subject), Chapter IV (controller and processor), Chapter V (transfer of personal data to third countries or international organizations), Chapter VI (independent supervisory authorities), Chapter VII (cooperation and consistency) and Chapter IX (specific processing situations), insofar as they are necessary to reconcile the right to the protection of personal data with the freedom of expression and information. 3. Each Member State shall notify the Commission of the provisions it adopts in its law pursuant to paragraph 2 and, without delay, any subsequent amendment or modification thereof."

9. Whereas Regulation (EU) 2016/679 (General Data Protection Regulation, which repealed Directive 95/46/EC) provides for the specific case of processing data in the exercise of the right to freedom of expression and information (Article 85 GDPR, Recital 153 of the preamble).

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with reference to Article 11 of the Charter), and with a "opening clause" allows member states to introduce appropriate regulations to reconcile the right to the protection of personal data and the right to freedom of expression and information, including processing for journalistic purposes and for purposes of academic, artistic, or literary expression. To implement the above provision, the national legislator introduced a relevant regulation with Article 28 of Law 4624/2019.

10. Since according to Article 28 paragraph 1 of Law 4624/2019 "to the extent necessary to reconcile the right to the protection of personal data with the right to freedom of expression and information, including processing for journalistic purposes and for purposes of academic, artistic, or literary expression, the processing of personal data is permitted when: a) the data subject has given their explicit consent, b) it concerns personal data that has been clearly made public by the data subject

themselves, c) the right to freedom of expression and the right to information outweigh the right to the protection of the personal data of the subject, particularly on matters of general interest or when it concerns personal data of public figures, and d) when it is limited to what is necessary to ensure freedom of expression and the right to information, particularly when it concerns special categories of personal data, as well as criminal prosecutions, convictions, and related security measures, taking into account the right of the subject to privacy and family life.

2. To the extent necessary to reconcile the right to the protection of personal data with the right to freedom of expression and information, including processing for journalistic purposes, and for purposes of academic, artistic, or literary expression, the following do not apply: a) Chapter II of the GDPR "Principles," except for Article 5, b) Chapter III of the GDPR "Rights of the Data Subject," c) Chapter IV of the GDPR "Controller and Processor," except for Articles 28, 29, and 32, d) Chapter V of the GDPR "Transfers of Personal Data to Third Countries or International Organizations," e) Chapter VII of the GDPR "Cooperation and Consistency," and f) Chapter IX of the GDPR "Provisions concerning Specific Processing Situations."

11. Furthermore, according to Article 5A of the Constitution "1. Everyone has the right to information, as provided by law. Restrictions on this right may only be imposed by law if they are absolutely necessary and justified for reasons of national security, combating crime, or protecting the rights and interests of third parties. 2. Everyone has the right to participate in the Information Society. Facilitating access to information that is disseminated electronically, as well as its production, exchange, and dissemination, is an obligation of the State, always respecting the guarantees of Articles 9, 9A, and 19 of the Constitution."

12. Since from Articles 5 paragraph 1, 9 paragraph 1, in conjunction with Article 2 paragraph 1 of the Constitution, which establishes the respect and protection of human dignity as a primary obligation of the State, arises, as a particular manifestation of the right of personality, the right to informational self-determination, a right that is now explicitly constitutionally guaranteed in Article 9A. From the Constitution also arises the right of the press to inform the public and the corresponding claim of citizens to information, according to Article 14 paragraph 1 of the Constitution (freedom of expression, right to inform) and according to the constitutionally guaranteed right to information in Article 5A (right to be informed), necessary for the activation of each person's right to participate in the social, economic, and political life of the country, which is guaranteed in Article 5 paragraph 1 of the Constitution.

From the Constitution, it does not emerge in abstracto the predominance of one right over another. It must, therefore, be a concrete delineation of the fields of application of the conflicting rights, according to the principles of weighing opposing interests and practical harmony and proportional balancing, applying also the principle of proportionality which is constitutionally guaranteed in Article 25 paragraph 1, in such a way that the protected goods (freedom of information and the right of citizens to information – Articles 14 paragraph 1 and 5A of the Constitution – and the right to personality and the protection of personal data) are balanced appropriately.

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of private life and the right to informational self-determination) to maintain their regulatory scope. The assessment of whether a specific processing operation was conducted lawfully or, conversely, whether it violated the right to informational self-determination of the affected individuals and the right to privacy, must be based on an evaluation of the issue, on the one hand, as to whether this processing served the interest of informing public opinion and whether this interest outweighs, in the specific case, the right to privacy, and on the other hand, whether the examined infringement was necessary within the framework of the principle of proportionality for the exercise of the right to information.

13. Because, according to Article 1 of the Ministerial Decision no. oik//2011 (Ministerial Decision no. 40055, Government Gazette B 2147 2011: Development, integration & Certification of municipal websites) concerning the official websites of the Municipalities, it is stated that "1. Each Municipality has an official website, through which information and services are provided to citizens and

businesses. For this purpose: a) informative content is prepared, which promotes the transparency of administrative action and informs the citizen about the work, activities, and initiatives of the Municipality, social benefits, provided services, etc., and b) appropriate software applications are designed and developed, which particularly allow communication with the Municipality's services, the submission of reports, declarations, and applications by natural or legal persons dealing with the Municipality, participation in consultations and competitions, as well as the provision of comprehensive electronic services that reduce the administrative burden of transactions and promote economic development and competitiveness. 2. The Municipality is responsible for the accuracy, correctness, suitability, completeness, authenticity, and updating of the information data published through its website. At the same time, it takes all necessary technical and administrative measures to prevent unauthorized access and alteration, both of the content and of the electronic communication forms and access to the services provided by its website, as well as for the protection of personal data that it may collect, store, and process through its website (...)." Furthermore, in Article 2 of the aforementioned Ministerial Decision regarding the structure and content of the website, it is stipulated that "1. The informational content of the website is selected based on the criterion of transparency of the administrative action of the entity and the information of the citizen about the programs, activities, initiatives, projects, collaborations, and other actions of developmental, social, cultural, or educational nature. At the same time, it provides valid information about the responsibilities of the Municipality, the services it provides to citizens and businesses, the beneficiaries of administrative benefits, the terms and conditions for the provision of services, as well as the institutional framework under which the aforementioned responsibilities are exercised," while according to Article 5, paragraph 2, item b, it is stated that "(...) The Content Responsible, who receives the content to be published from the Owner, checks it for compatibility with the General principles of content publication of Article 1 of this document, the general publishing standards of the website, which he has established, as well as the more specific goals and policies of publicity, information, and provision of electronic services of the entity, and submits it for publication to the Technical Responsible, along with the relevant instructions for the placement, appearance, and functionality on the website. He is also responsible for obtaining all necessary intellectual (copyright) and industrial property rights as well as for ensuring compliance with the provisions of the law for the protection of personal data regarding the content and data stored and made available by the Municipality's website."

In Annex B of the said Ministerial Decision, among other responsibilities of the Municipality, social protection and solidarity are mentioned, specifically "5.6 The promotion and development of volunteering and social solidarity through the creation of local networks of social solidarity, volunteer organizations, and groups of volunteers that will operate to achieve the goals and support the work of social protection."

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and solidarity of the Municipality and the Community," for which the citizens must be informed, according to the aforementioned.

14. Whereas, in this case, from the study of all the elements of the case and based on the considerations mentioned above, the Authority finds that the Municipality processed the personal data of the complainant (first name, surname, professional status, workplace, political beliefs, and content of the email sent), by posting this information on the official website of the Municipality of Patras www.e-patras.gr, in a related article titled "..." and dated

15. Whereas regarding the political beliefs of the complainant and the argument of the respondent that he had, in any case, evidently publicized these through public posts on his personal Facebook page, it is established that the complainant was indeed a member of the school committee representing a specific political party that appointed him to this position, and he knowingly chose to make his profile public on this particular social network, where he publicly posted his political positions (Article 28, paragraph 1 of Law 4624/2019).

16. Whereas additionally, it is established that the controversial post from ... containing information on the official website of the respondent Municipality regarding the approval decision of the School Committee for the social tutoring, which included the aforementioned details of the complainant, was

made for the purpose of informing the citizens and enhancing the transparency of municipal action. However, it mentioned among other things "... in the context of intense political confrontation and criticism, and therefore the data subject could not reasonably expect this specific post on the said website with this content and indeed with reference to his professional status, his workplace, and the isolation of the content of the email he had sent to facilitate the committee meeting, while the purpose of informing the citizens could have been achieved without the provision of these details. At the same time, it is noted that in a related post of the same approval decision on the DIAVGEIA website (with ID: ...) only the full name of the complainant, his status as a regular member of the committee, as well as his position in the context of the dialogical discussion that took place during the committee meeting, which he had already sent via email to facilitate the committee meeting, were published, and not his professional status or workplace. In light of the above, upon the combined interpretation of cases (c) and (d) of the first paragraph of Article 28 of Law 4624/2019, the publication of the simple, in this case, personal data of the complainant's professional status, the place of work, and the content of the email he had sent to the School Committee to facilitate its meeting was not necessary for achieving the purposes of maintaining the specific website according to the law, which are to inform the citizens and enhance the transparency of administrative action, and exceeds the necessary measure, as these purposes could have been achieved by milder means. This is because the reference of the publication in the context of informing the citizens about the social protection and solidarity work of the Municipality, as well as for reasons of transparency of municipal work, must be made in such a way that the intrusion into the private and family life of the data subject is minimized within the framework of harmonized application of the protection of private and family life on the one hand and the right to information on the other. In this case, the principle of minimization (Article 5, paragraph 1, point (c) of the GDPR, which according to Article 28, paragraph 2 of Law 4624/2019 applies in this case) or of prudence in the processing of personal data, which also applies to the processing of personal data for journalistic purposes to satisfy a legitimate interest in informing citizens, imposes the least burdensome processing for the subject, even if it is not as effective compared to an overly comprehensive processing. In this specific case, the said publication constitutes a form of interference with the rights that constitute the constitutionally protected private sphere of the individual (Articles 9, paragraph 1, subparagraph (b) and 9A of the Constitution), which is deemed unlawful because it is not necessary for the purpose of informing the public, and exceeds the limits set by the

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Principle of Proportionality (see Article 28 paragraphs 1 and 2 of Law 4624/2019 and Article 5 paragraph 1 subparagraph c of the GDPR).

17. Given the above, it appears that the purposes of valid and complete information to the citizens could be achieved through milder means, such as, for example, informing about the approval decision of the Municipal Council for the public tutoring and posting this decision on the Municipality's website (as it was also posted on the DIAVGEIA website), mentioning the minority and majority opinions.

18. Furthermore, it is taken into account that after the document providing clarifications sent by the Authority to the reported Municipality, as the latter acknowledges in its memorandum with reference number G/EIS/9059/22-11-2024 to the Authority, the aforementioned link was removed from the official website of the Municipality, but in the meantime, it had been published on several other websites, including that of the Mayor's municipal faction "F".

19. As a result of the above, it is established that the principle of data minimization (Article 28 of Law 4624/2019, Article 5 paragraph 1 subparagraph c of the GDPR) has been violated, as the data being processed is not adequate, relevant, and does not limit itself to what is necessary in relation to the intended purpose, while the data subject could not reasonably expect that for the specific purpose of informing the citizens, there would be processing involving the public posting of the entire email message on the official website of the Municipality, with the details of their position and workplace, especially in the context of intense political confrontation and criticism.

20. The violation of the fundamental principles for processing, as detailed above, incurs the imposition of administrative sanctions under Article 83 paragraph 5 subparagraph a of the GDPR. According to

the GDPR (Recital 148), in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, should be imposed for each violation of this Regulation, in addition to or instead of the appropriate measures imposed by the supervisory authority in accordance with this Regulation.

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21. Based on the above, the Authority considers that the imposition of a corrective measure is not sufficient to restore compliance with the provisions of the GDPR that have been violated and that, based on the circumstances identified, an additional effective, proportional, and deterrent administrative monetary fine should be imposed under Article 83 of the GDPR, both to restore compliance and to sanction the unlawful behavior.

22. Furthermore, the Authority took into account the criteria for assessing the fine as defined in Article 83 paragraph 2 of the GDPR, paragraph 5 of the same article applicable to the present case, and the Guidelines 4/2022 of the European Data Protection Board for calculating administrative fines for the purposes of Regulation 2016/679, which were approved on 24/5/2023, as well as the factual data of the examined case and in particular:

- i) The fact that the reported party, in its capacity as data controller, violated the principle of data minimization as provided in Article 5 paragraph 1 subparagraph c, i.e., violated a fundamental principle of the GDPR for the protection of personal data.
- ii) The fact that the data controller was aware of the legal framework for postings on the Municipality's website and that this act of processing cannot be attributed to negligence.
- iii) The fact that the reported Municipality, after the document providing clarifications sent to it by the Authority, removed the link from its official website: ...
- iv) The fact that there are no previous related violations by the reported party.
- v) The fact that the reported party did not delay in responding to the Authority's documents and cooperated in providing clarifications.
- vi) The fact that the data that were published in violation of the principle of data minimization do not belong to special categories of data.

3 See EDPB 29, Guidelines on the application and setting of administrative fines for the purposes of Regulation 2016/679 WP253, p. 6

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vii) The fact that from the information provided to the Authority, based on which it identified the aforementioned violation of the GDPR, it does not appear that the data controller caused material damage to the affected individual.

23. Based on the above, the Authority unanimously decides that an administrative sanction, as mentioned in the operative part, should be imposed on the reported party as the data controller, which is deemed proportional to the severity of the violation.

FOR THESE REASONS

The Authority,

Imposes on the reported Municipality of Patras as the data controller the effective, proportional, and deterrent administrative monetary fine that is appropriate for the specific case, according to its specific circumstances, in the total amount of five thousand (5,000) euros, for the aforementioned established violation of Article 5 paragraph 1 subparagraph c of the GDPR, as specified above, in accordance with Articles 58 paragraph 2 subparagraph 0 and 83 paragraph 5 subparagraph a of the GDPR.

The Deputy President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou